

26STCV00973 26STCV00973

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-23

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Case Number: 26STCV00973 Hearing Date: September 23, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 23, 2026 TRIAL

DATE: Not set

CASE: Tori Chen v. Los

Angeles Department of Water and Power, et al.

CASE NO.: 26STCV00973

PLAINTIFF'S

MOTION TO SET ASIDE AND VACATE THE COURT'S MAY 26, 2026 ORDER SUSTAINING

DEFENDANT'S DEMURRER WITHOUT LEAVE TO AMEND AND TO VACATE OR PREVENT ENTRY OF JUDGMENT

MOVING PARTY: Plaintiff

Tori Chen

RESPONDING

PARTY: Defendant

City of Los Angeles

I. INTRODUCTION

On January 12, 2026, Plaintiff, Tori Chen, filed a Complaint against Defendants, City of Los Angeles, acting by and through its Department of Water and Power (the "City"), Adriana Rubalcava, Walter Ramirez, Sumita

Thappa, and Sandra Wallace for retaliation for whistleblowing (Labor Code § 1102.5), retaliation for safety complaints/whistleblower protection (Labor Code § 6310), and breach of contract/breach of written policy/MOU (unpaid accrued PTO).

On February

5, 2026, this case was deemed related to Case No. 23STCV19719. Case No. 23STCV19719 is the lead case.

On April

20, 2026, the City filed a demurrer to the Complaint.

On May 26,

2026, the court sustained the demurrer without leave to amend.

On June 25,

2026, Plaintiff filed a motion to set aside and vacate the court's May 26, 2026 order and to vacate or prevent entry of judgment.

On September

1, 2026, judgment was entered in the City's favor.

On

September 10, 2026, the City filed an opposition.

On

September 14, 2026, Plaintiff filed a reply.

II. DISCUSSION

& LEGAL STANDARD

The

motion fails for two reasons. First, it

is procedural defective. Plaintiff moves

pursuant to Code of Civil Procedure section 663, which provides, "[a] judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment: 1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case

when the judgment is set aside, the statement of decision shall be amended and corrected. 2. A judgment or decree not consistent with or not supported by the special verdict." (Code Civ. Proc., § 663.) By its very terms, Section 663 applies to a judgment or decree. It does not apply to an interim order sustaining a demurrer without leave to amend.

Second, the motion is substantively defective. The court sustained the City's demurrer based on facts which the court judicially noticed. The judicially noticed fact established that the City rejected Plaintiff's claim on July 8, 2024, thereby triggered a six-month statute of limitation. It is undisputed Plaintiff filed this action more than six months after July 2024. Plaintiff fails to show any incorrect or erroneous legal basis for the court's May 26, 2026 order.

III. CONCLUSION

The motion
is DENIED.

Moving party to give notice, unless waived.

Dated: September 23,
2026

Brock T. Hammond

Judge of the Superior Court